

25VECV03497 25VECV03497

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-08-18

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Case Number: 25VECV03497 Hearing Date: August 18, 2026 Dept: NWI

I.

Background

On June

24, 2025, Plaintiff Nekissa Zareh ("Plaintiff") filed a complaint against Defendants FCA US LLC ("FCA"), Shaver Jeep of Thousand Oaks ("Shaver Jeep"), and Does 1 to 10 alleging six causes of action: (1) violation of Cal. Civ. Code § 1793.2(d); (2) violation of Civ. Code § 1793.2(b); (3) violation of Civ. Code § 1793.2(a)(3); (4) breach of the implied warranty of merchantability; (5) negligent repair; and (6) fraudulent inducement through concealment.

On June

22, 2026, Plaintiff filed the instant motion to compel FCA's initial responses.

On August

5, 2026, FCA filed its opposition.

To date,

Plaintiff has not filed a reply.

II. Legal

Standard

CCP § 871.26 provides for expedited discovery procedures in lemon law actions. Specifically, CCP § 871.26(h) provides for various documentation which a defendant must provide to a defendant within 60 days after the filing of the answer or other responsive pleading. (See CCP § 871.26(h)).

CCP § 871.26(j)(2) provides, in pertinent part, the following: “Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows . . . two-thousand five-hundred-dollar (\$2,500) sanction against the defendant's attorney . . . paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).” (CCP § 871.26(j)(2).)

III. Discussion

FCA filed its initial demurrer on September 25, 2025, requiring FCA to comply with CCP § 871.26(h) by November 24, 2025. (See Demurrer.) However, Plaintiff argues, FCA has failed to “provide complete, verified, and unfiltered disclosures. FCA's production is deficient in multiple material respects, and the deficiencies are not inadvertent oversights but rather systematic omissions that conceal critical evidence bearing on the number of repair attempts and the nature of FCA's internal warranty administration.” (Motion at 5:9-15.)

In opposition, FCA argues that, on June 16, 2026, in response to Plaintiff's meet and confer efforts and before Plaintiff filed this motion, FCA produced compliant, complete production. (Opposition at 1:17-24.)

Plaintiff has not filed a reply.

The Court finds that FCA complied and served discovery requests prior to this motion, in good faith, after Plaintiff's meet and confer efforts.

IV.

Conclusion

Based on the foregoing, Plaintiff's motion is DENIED as MOOT.

Moving party to give notice.